



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing eight judgments on Tuesday 25 April 2017 and 13 judgments and / or decisions on Thursday 27 April 2017.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 25 April 2017

[Krasniqi v. Austria \(application no. 41697/12\)](#)

The applicant, Agron Krasniqi, is a national of Kosovo who was born in 1974. The case concerns his expulsion from Austria to Kosovo, where he now lives.

Mr Krasniqi moved to Austria when he was 19, returning to Kosovo in 1997, age 22, when his asylum claim was dismissed. He returned to Austria one year later and claimed asylum again. The claim was dismissed, but he and his family were granted subsidiary protection and a temporary residence permit. He lived and worked in Austria for the next 14 and half years with his wife, who is of Montenegrin origin, and their three children; he also has a fourth child from an extra-marital relationship with an Austrian citizen. His parents and siblings also all live in Austria, although his father continues to own land and three shops in Kosovo, which are run by relatives.

Between 2003 and 2012 Mr Krasniqi was convicted on nine separate occasions of various crimes, including bodily harm, burglary, drugs offences and aggravated threat. As a result of his criminal record, he was issued in 2007 with a ban prohibiting his return to Austria for ten years. However, the ban remained without effect as long as he had subsidiary protection. His subsidiary protection was thus withdrawn in 2010, the asylum authorities finding that the security situation in Kosovo had significantly improved, and his expulsion was declared admissible. The asylum courts subsequently confirmed this decision; they essentially concluded that the public interest in expelling Mr Krasniqi and in preventing crime outweighed his personal interest in maintaining his strong private and family ties in Austria.

In 2011 the Constitutional Court refused to deal with the case and, following a period of pre-trial detention (in relation to one of his criminal convictions) and then detention pending expulsion, Mr Krasniqi was expelled to Kosovo in January 2013.

Relying on Article 8 (right to respect for private and family life) of the European Convention on Human Rights, Mr Krasniqi complains about the withdrawal of his subsidiary protection and his subsequent expulsion to Kosovo.

Just Satisfaction

[Magyarországi Evangéliumi Testvérközösség v. Hungary \(no. 54977/12\)](#)

The case concerns the question of just satisfaction following a judgment on the new Hungarian Church Act and religious communities' loss of full church status.

Magyarországi Evangéliumi Testvérközösség, the applicant, is a religious community active in Hungary since 1981. Prior to the adoption of a new Church Act, which entered into force in January 2012, religious communities were registered as churches in Hungary and received State funding. Under the new law, which aimed to address problems relating to the exploitation of State funds by

certain churches, only a number of recognised churches continued to receive funding. All other religious communities, including *Magyarországi Evangéliumi Testvérközösség*, lost their status as churches and corresponding benefits. They were however free to continue their religious activities as associations.

Following a decision of the Constitutional Court, which found certain provisions of the new Church Act to be unconstitutional – in particular the fact that only incorporated churches were entitled to one percent of the personal income tax which could be earmarked by believers as donations – new legislation was adopted in 2013, under which religious communities such as the applicants could again refer to themselves as churches. However, the law continued to apply in so far as it required the communities to apply to Parliament to be registered as incorporated churches if they wished to regain access to the monetary and fiscal advantages to which they had previously been entitled.

Relying in particular on Article 11 (freedom of assembly and association) read in the light of Article 9 (freedom of thought, conscience and religion), *Magyarországi Evangéliumi Testvérközösség* and several other religious communities complained to the European Court of Human Rights about their deregistration under the new law and the discretionary reregistration of churches.

In its [judgment on the merits](#) on 8 April 2014 the Court held that there had been a violation of Article 11 read in the light of Article 9. It found in particular that the authorities had disregarded their duty of neutrality by removing the applicant communities' church status altogether rather than applying less stringent measures, by establishing a politically tainted re-registration procedure and by treating the applicants differently from the so-called incorporated churches. In its subsequent [judgment on just satisfaction](#) on 28 June 2016 the Court awarded damages to all the applicant religious communities except for *Magyarországi Evangéliumi Testvérközösség*, in respect of which it held that the question of the application of Article 41 (just satisfaction) was not ready for decision and reserved it for examination at a later date. The Court will deal with this question in its judgment of 25 April 2017.

[Rezmiveş and Others v. Romania \(nos. 61467/12, 39516/13, 48231/13, and 68191/13\)](#)

The applicants, Daniel Arpad Rezmiveş, Marius Mavroian, Laviniu Moşmonea and Iosif Gazsi, are Romanian nationals who were born in 1970, 1966, 1976 and 1972 respectively. The case concerns the conditions of detention in Romanian prisons and in detention facilities attached to police stations.

Mr Rezmiveş, Mr Moşmonea and Mr Gazsi, who are currently detained in Timișoara, Pelendava and Baia Mare Prisons, and Mr Mavroian, who was detained in Focșani Prison and was released on 13 January 2015, complain in particular of overcrowding, lack of space and poor hygiene conditions in their cells (presence of rats, mould on the walls, and so on), inadequate access to showers and toilets, a lack of natural light, poor ventilation, and the unsatisfactory quality of the equipment and food provided in the prisons in which they were or are still detained.

Relying on Article 3 (prohibition of inhuman or degrading treatment), the applicants complain of the conditions of their detention in Gherla, Aiud, Oradea, Craiova, Târgu-Jiu, Pelendava, Rahova, Tulcea, Iași and Vaslui Prisons, and in the Baia Mare police detention facilities.

[OOO Izdatelskiy Tsentr Kvartirnyy Ryad v. Russia \(no. 39748/05\)](#)

The applicant company, OOO Izdatelskiy Tsentr Kvartirnyy Ryad, is a publishing company incorporated under Russian law based in Moscow. At the relevant time it was the publisher of Kvartirnyy Ryad, a newspaper covering the housing market in the Moscow area. The company complains that its freedom of expression was violated when it was made liable for defamation in 2004. The newspaper had published an article about the administration of a large commonhold association, Bluebird. It reported that local residents had brought complaints against the head of the

association, T. It also asked whether T.'s role as the deputy head of a district council was compatible with his commercial business activity. T. successfully sued the company for defamation, and it was ordered to pay damages of 10,000 Russian roubles (around 270 euros). The company appealed, but it was unsuccessful. It relies on Article 10 (freedom of expression) to complain that the judgments unduly restricted its right to freedom of expression, arguing that the article had contributed to a debate of public interest and that the interference was disproportionate in the circumstances.

[Vaskrsić v. Slovenia \(no. 31371/12\)](#)

The applicant, Zoran Vaskrsić, is a Slovenian national who was born in 1980 and lives in Kresnice (Slovenia). Relying on Article 1 of Protocol No. 1 (protection of property), he complains that the sale of his home at public auction involved a disproportionate interference with his property rights. He alleges that the property was sold for 50% of its market value, in the course of debt enforcement proceedings arising from a principal debt of only 124 euros. Mr Vaskrsić also relies on Article 13 (right to an effective remedy), to complain that he did not have access to an effective legal remedy in respect of his property rights complaint. In particular, he claims that he was unable to have the sale of his house revoked, even after he had paid an outstanding debt.

[The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.](#)

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Isayev and Others v. Russia (nos. 20707/06, 29518/06, 39006/06, 7527/07, 7678/07, 18756/07, 36533/07, 46727/07, and 55639/07)

Solovey v. Russia (no. 24157/11)

Ignjatović v. Serbia (no. 49915/08)

Thursday 27 April 2017

[Asatryan v. Armenia \(no. 3571/09\)](#)

The applicant, Silva Asatryan, is an Armenian national who was born in 1960 and lived in Yerevan prior to her imprisonment. She complains that she did not have a fair hearing in criminal proceedings brought against her. In October 2007 she was convicted of attempted murder and sentenced to nine years' imprisonment, in relation to a 2001 car-bomb attack. Ms Asatryan appealed the conviction, but she was ultimately unsuccessful. Relying in particular on Article 6 §§ 1 and 3 (d) (right to a fair trial and right to obtain attendance and examination of witnesses), she complains that, when rejecting her appeal, the Criminal Court of Appeal relied on pre-trial witness statements which had not been read out and examined in court at first instance or on appeal, and that she had had no opportunity to challenge the witnesses who had given them at any time during the proceedings.

[Sommer v. Germany \(no. 73607/13\)](#)

The applicant, Ulrich Sommer, is a German national who was born in 1952 and lives in Cologne (Germany). He works as a criminal defence lawyer. The case concerns his complaint about an inspection of his professional bank account by the public prosecution office.

In March 2011 the public prosecutor contacted Mr Sommer's bank requesting information about all transactions relating to his professional bank account over the previous two years, as well as information about further, possibly private accounts. The request was made in the context of a criminal investigation into organised fraud, one of the suspects being a client of Mr Sommer. The

prosecutor notably suspected that money transferred from this client's fiancée to Mr Sommer to pay his legal fees had stemmed from illegal activities. The bank complied and a list of 53 transactions was subsequently included in the investigation file as evidence. Mr Sommer learned of these investigative measures concerning his bank account when granted access to the case file, as the lawyer of the accused, in January 2012. Mr Sommer asked the prosecuting authorities and then the courts – to whom the file had been transferred because the criminal proceedings against Mr Sommer's client had started – to return the data, without success. The courts notably found that the investigation was lawful and that the bank had provided the information voluntarily. This decision was confirmed on appeal. The Court of Appeal found that the safeguards – in particular lawyer-client privilege – in place concerning seizure of documents entrusted to lawyers were not applicable in Mr Sommer's case. The Federal Constitutional Court refused to admit Mr Sommer's complaint in September 2013.

Relying on Article 8 (right to respect for private life), Mr Sommer complains that the German authorities had, without justification, collected, stored and made available information about his professional bank account, thereby also revealing information about his clients.

[Di Sante v. Italy \(no. 32143/10\)](#)

The applicant, Mr Paolo di Sante, is an Italian national who was born in 1958 and lives in Bisenti (Italy). The case concerns complaints by Mr di Sante about the length of proceedings and, in particular, the limitation period for claiming compensation for a violation of the right to a hearing within a reasonable time, the failure to execute a "Pinto" decision of the Court of Appeal and the ineffectiveness of the "Pinto Act" as a remedy.

Mr di Sante was a party to proceedings instituted on 13 May 1993. On 16 September 2008 he brought a claim in the Campobasso Court of Appeal under the "Pinto Act", complaining of the excessive length of the proceedings in question.

In a decision of 14 April 2009 the Court of Appeal observed that the proceedings had exceeded a reasonable time, but only in respect of the period between 1998 and 2008, finding that the right to compensation for a violation of the right to a hearing within a reasonable time was subject to a ten-year statutory limitation period. It held that Mr di Sante should have brought a claim under the "Pinto Act" before the expiry of this limitation period. Making an assessment on an equitable basis, it awarded the applicant 6,000 euros (EUR) in respect of non-pecuniary damage and EUR 1,000 for costs and expenses. As no appeal on points of law was lodged, the decision became final on 23 November 2009. The sum awarded by the Court of Appeal was paid on 19 August 2013.

Relying on Article 6 § 1 (right to a fair hearing within a reasonable time), Mr di Sante complains that the Court of Appeal applied the ten-year limitation period to his claim for compensation for the alleged violation of his right to a hearing within a reasonable time. Relying on the same Article and on Article 1 of Protocol No. 1 (protection of property), Mr di Sante complains of the delay by the national authorities in complying with the decision given in the "Pinto" proceedings and of the fact that he was obliged to institute enforcement proceedings. Under Article 13 (right to an effective remedy), Mr di Sante complains that the remedy under the "Pinto Act" is ineffective, objecting in particular to the application of the ten-year limitation period to his claim for compensation for a violation of the right to a hearing within a reasonable time, and to the duration of the "Pinto" proceedings.

[Schmidt v. Latvia \(no. 22493/05\)](#)

The applicant, Heide Lydia Friedel Schmidt, is a German national who was born in 1938 and lives in Hamburg (Germany). The case concerns her complaint about the unfairness of divorce proceedings.

She married, A.S., a Latvian national in 1970, and before their separation in 1999/2000, they lived in apartments in both Hamburg and Riga. In 2003 A.S. brought divorce proceedings before the Latvian

courts. Ms Schmidt, who no longer lived in Latvia, was notified of the proceedings via a summons that was sent to her last known place of residence, namely the apartment in Riga she used to share with her husband and in which he still lived. Unable to reach Ms Schmidt and told by A.S. that he was unaware of his spouse's place of residence, the courts published two notifications in the Official Gazette. Ruling in her absence, the courts then granted the divorce in 2004. A.S. passed away soon after and, according to Ms Schmidt, she only learned about the divorce when going to Riga to attend his funeral. Her request for supervisory review of the judgment in which the divorce was granted was dismissed in 2005; the Senate of the Supreme Court concluded that the first-instance court's actions had been compatible with the requirements of the Civil Procedure Law.

Relying on Article 6 § 1 (right to a fair hearing and access to court), Ms Schmidt claims that, unaware of the divorce proceedings, she had been deprived of the right to take part in those proceedings as well as of other procedural rights. She contests in particular her ex-husband's claim that he had not known her new place of residence.

[Zherdev v. Ukraine \(no. 34015/07\)](#)

The applicant, Artyom Zherdev, is a Ukrainian national who was born in 1988 and at the time of his most recent communication with the Court was detained in Toretsk (Ukraine). In 2005, when Mr Zherdev was 16, he was arrested in relation to the murder of a night security guard at a shop in Toretsk. After prolonged criminal proceedings (including numerous appeals and several re-trials), in 2009 he was convicted of robbery and aggravated murder, and sentenced to 13 years' imprisonment. He makes numerous complaints about the investigation and the proceedings against him. In particular, he alleges that he was subjected to physical and psychological ill-treatment by the police in order to extract a confession; that he was questioned in the presence of a lawyer he had not freely chosen; that the confessions were used for his conviction; that he was not assisted by a lawyer at an identification parade and in other investigative actions; and that his pre-trial detention was unlawful and unreasonably long. He relies on Article 3 (prohibition of ill-treatment), Article 5 § 1 (c) (right to liberty and security), Article 5 § 3 (entitlement to trial within a reasonable time or to release pending trial), and Articles 6 §§ 1 and 3 (c) (right to a fair trial and right to legal assistance of own choosing).

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Burdiashvili and Others v. Georgia (no. 26290/12)

A.M. and A.K. v. Hungary (nos. 21320/15 and 35837/15)

Albert and Others v. Hungary (no. 5294/14)

Cazacliu and Others v. Romania (no. 63945/09)

Varin and Others v. Russia (nos. 78544/13 and 46728/14)

Zvyagin v. Russia (no. 22935/10)

Vannucci v. San Marino (no. 33898/15)

Hodzic v. Slovenia (no. 3461/08)

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.